

**ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR**

JUDICIAL DEPARTMENT

Diary No.4114/2021

Tariq Mehmood etc.

Vs.

Siraj ud Din etc.

<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
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22.02.2021 Malik Javed Aslam Naich, Advocate.

(Objection Case)

Office has raised objection at Serial No.15 as to how revision is competent before this Court against an interlocutory / interim order dated 17.02.2021 passed by Civil Judge, Liaquatpur in a suit for specific performance filed on 17.04.2017 by the petitioners having value of Rs.4,50,000/- for the purpose of court fee and jurisdiction.

2. Learned counsel for the petitioners states that the petitioners in the first instance had tried to file revision petition before the Court of District Judge, Rahim Yar Khan, but the Institution Branch of the said Court has refused to entertain the same by referring to the Code of Civil Procedure (Punjab Amendment) Ordinance, 2021 notified on 10.02.2021 whereby Section 115 relating to revision had been amended by providing revision against the order of learned Trial Court to this Court within 30 days.

3. Be that as it may, it is observed that by amendment in Section 159 of Code of Civil Procedure, 1908 ("Code") vide the same ordinance, proceedings instituted prior to enactment of afore-referred Amendment Ordinance are to be proceeded and dealt in accordance with the provisions of the Code, which

existed prior to the said Amendment Ordinance, therefore, revision against order of the learned Trial Court in the present case where the suit was filed prior to the said Amendment shall lie before the relevant District Judge and not before this Court, therefore, office objection is **upheld**. The petitioner if advised may seek appropriate remedy.

(MUZAMIL AKHTAR SHABIR)
Judge

WaqaR